him of admission. Had admissions been determined purely based on marks and without regard to caste or religion, he would have been admitted to the college of his choice.

Champakam Dorairajan was in a similar position. She had secured a BA from Madras University and wanted to enrol into medical college to pursue an MBBS. Her complaint was the same – as a Brahmin, she was put at a disadvantage and would not secure admission because of the Communal G.O. However, there was one fundamental difference between Srinivasan and Dorairajan. Dorairajan did not apply for admission at all – her complaint was made on a speculative basis, following inquiries with the authorities on the prospects of her admission.[8]

The 'full bench' of three judges of the Madras High Court heard arguments in Srinivasan's and Dorairajan's cases (which were clubbed together) from Madras's most prominent lawyers. V.V. Srinivasa Iyengar, described as a 'doyen of the Madras bar',[9] represented Srinivasan. Alladi Krishnaswamy Iyer, former advocate general of Madras and member of the Constituent Assembly, represented Dorairajan. Of Iyer it is said that lawyers 'of the stature of Setalwad and Katju, judges like Patanjali Sastry and N. Rajagopal Iyengar (both of whom were his juniors), politicians, journalists and even famous doctors called on him to savour his wit and wisdom'.[10] Madras was represented by its advocate general, V.K. Thiruvenkatchari.

Iyengar and Iyer argued on behalf of their clients that the Communal G.O. violated two fundamental rights of the newly enacted Constitution. (The fundamental rights are enumerated in Part III of the Constitution.) Article 15(1) prohibited the state from discriminating against any citizen 'on grounds only of religion, race, caste, sex, place of birth or any of them'. Article 29(2) stated that '[n]o citizen shall be denied admission into any educational institution maintained by the state or receiving aid out of state funds on grounds only of religion, race, caste, language or any of them'. Put simply, their argument was that their clients were being denied admission only because of their religion and caste. If admissions were to be determined without reference to those markers of identity, they would have been admitted to the colleges of their choice. The advocate general responded by